

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Mandate-Stay Denial

Entered July 6, 2026

The City of Norvale's motion to stay the mandate pending preparation of a petition for a writ of certiorari is denied. Federal Rule of Appellate Procedure 41(d) requires a showing that the contemplated petition would present a substantial question and that good cause supports withholding the mandate. Local Rule 41 likewise provides that a stay does not follow merely from a request and ordinarily will not be granted without a specific showing that the application is neither frivolous nor interposed for delay.

The City identifies no sufficient basis for the extraordinary relief sought. The June 18 decision applies settled preliminary-injunction and narrow-tailoring principles to one municipal ordinance and a particular evidentiary record. It accepts the City's legitimate operational interests, finds no viewpoint discrimination, and leaves the merits unresolved. The opinion also requires the district court to replace an imprecise command and to make an express security determination. The City's disagreement with the panel's assessment of fit and its chosen corrective remedy does not, without more, establish a substantial question suitable for certiorari.

The asserted implementation burden also does not supply good cause. Existing protection remains in force until a compliant order enters, and neutral authority over concrete event operations remains available. Withholding the mandate would defer the very clarification the City says its employees require.

The denial entered today does not itself issue the mandate. Rule 41(b) measures the ordinary issuance date as seven days after expiration of the rehearing period or seven days after entry of an order denying a timely rehearing petition or mandate-stay motion, whichever is later. The June 18 judgment produced a July 2 rehearing deadline. Because this order denying the timely mandate-stay motion is entered July 6, that denial is the later event for the Rule 41(b) calculation.

Accordingly, unless another order lawfully shortens, extends, or stays the period, the mandate is eligible to issue on July 13, 2026. The clerk shall maintain the present withholding through that date and shall review the docket before release. This order does not direct immediate issuance, add an extra period beyond the seven days required by the rule, or treat the original July 9 ordinary date as controlling after the later denial.

Nothing in this ruling changes the June 18 opinion or judgment, decides the district-court merits, or prevents the City from seeking relief available from the Supreme Court under its rules. No separate stay of the preliminary injunction has been requested or granted here. The parties remain governed by the existing interim order until the district court acts consistently with the appellate disposition. The motion to stay the mandate is DENIED. Entered by the panel on July 6, 2026, with immediate electronic notice to counsel and direction to the clerk as stated above.